



LIN 20/169

Migration (Arrangements for Protection, Refugee and Humanitarian Visas) Instrument (LIN 20/169) 2020

made under subregulation 2.07(5) and items 1401, 1402, 1403 and 1404 of Schedule 1
of the

Migration Regulations 1994

Compilation No. 6

Compilation date: 29 November 2025

Includes amendments: F2025L01435

Prepared by the Department of Home Affairs

About this compilation

This compilation

This is a compilation of the *Migration (Arrangements for Protection, Refugee and Humanitarian Visas) Instrument (LIN 20/169) 2020* that shows the text of the law as amended and in force on 29/11/2025 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

1 Name

This instrument is the *Migration (Arrangements for Protection, Refugee and Humanitarian Visas) Instrument (LIN 20/169) 2020*.

3 Authority

This instrument is made under the following provisions of the *Migration Regulations 1994*:

- (a) subregulation 2.07(5);
- (b) items 1401, 1402, 1403 and 1404 of Schedule 1.

4 Definitions

Note A number of expressions used in this instrument are defined in section 5 of the *Migration Act 1958*, including the following:

- (a) approved form;
- (b) visa.

In this instrument:

internet application has the meaning given by regulation 1.03 of the Regulations.

Regulations means the *Migration Regulations 1994*.

written notice means a notice in writing from the Department notifying a person they can make a visa application, including instructions about how to return the form to the Department.

7 Protection (Class XA) visa

- (1) For the purposes of item 1401 of Schedule 1 to the Regulations, an application for a Protection (Class XA) visa must be made using form 866 (Internet) as an Internet application.
- (2) If the application cannot be made in accordance with subsection (1) and the Department has given written notice authorising the person to do so, it can be made using form 866 and posted with sufficient prepaid postage to:

Protection Visas
Department of Home Affairs
GPO Box 9984
SYDNEY NSW 2001.

8 Refugee and Humanitarian (Class XB) visa

For the purposes of item 1402 of Schedule 1 to the Regulations, an application for a Refugee and Humanitarian (Class XB) visa by a kind of applicant mentioned in column 1 of an item in the table must be made:

- (a) using the form mentioned in column 2 for the item; and
- (b) in one of the places and corresponding manners mentioned in column 3 for the item.

Item No	Column 1 Applicant	Column 2 Form	Column 3 Place and manner
1	An applicant whose entry to Australia has been proposed in accordance with approved form 681	842 (Internet) and 681 (Internet)	(a) The application must be made as an Internet application; (b) If the application cannot be made in accordance with paragraph (a) and the Department has given written notice authorising the person to do so, it can be made using form 842 and 681 and: (i) posted with sufficient prepaid postage, to: Special Humanitarian Processing Centre Department of Home Affairs GPO Box 9984 SYDNEY NSW 2001; or (ii) made via the online portal at the following address: https://www.homeaffairs.gov.au/humvisaapplication
1A	An applicant whose entry to Australia has been proposed in accordance with approved form 1417	842 and 1417	Application must be: (a) posted with sufficient prepaid postage to: Special Humanitarian Processing Centre Department of Home Affairs GPO Box 9984 SYDNEY NSW 2001; or (b) made via the online portal at the following address: https://www.homeaffairs.gov.au/humvisaapplication
2	Applicant who is covered by subitem 1402(3B) of Schedule 1 to the Regulations and who has received written notice	842	Application must be made in accordance with the instructions in the written notice
3	Any other applicant	842 (Internet); 842	(a) The application must be made as an Internet application. (b) If the application cannot be made in accordance with paragraph (a), and the Department has given written notice authorising the person to do so, the application may be made using form 842 and: (i) posted with sufficient prepaid postage to a Departmental office; or (ii) emailed to the Department; or (iii) made at a diplomatic, consular or migration office maintained by or for the Commonwealth and located outside Australia.

9 Temporary Protection (Class XD) visa

- (1) For the purpose of item 1403 of Schedule 1 to the Regulations, an application for a Temporary Protection (Class XD) visa must be made using form 866 (Internet) as an Internet application.

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- (2) If the application cannot be made in accordance with subsection (1) and the Department has given written notice authorising the person to do so, it can be made using form 866 and posted with sufficient prepaid postage to:

Protection Visas
Department of Home Affairs
GPO Box 9984
SYDNEY NSW 2001.

10 Safe Haven Enterprise (Class XE) visa

- (1) For the purpose of item 1404 of Schedule 1 to the Regulations, an application for a Safe Haven Enterprise (Class XE) visa must be made using form 866 (Internet) as an Internet application.
- (2) If the application cannot be made in accordance with subsection (1) and the Department has given written notice authorising the person to do so, it can be made using form 866 and posted with sufficient prepaid postage to:

Protection Visas
Department of Home Affairs
GPO Box 9984
SYDNEY NSW 2001.

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
amdt = amendment	pres = present
c = clause(s)	prev = previous
C[x] = Compilation No. x	(prev...) = previously
Ch = Chapter(s)	Pt = Part(s)
def = definition(s)	r = regulation(s)/rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
Div = Division(s)	rep = repealed
exp = expires/expired or ceases/ceased to have effect	rs = repealed and substituted
F = Federal Register of Legislation	s = section(s)/subsection(s)
gaz = gazette	Sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	Sdiv = Subdivision(s)
LIA = <i>Legislative Instruments Act 2003</i>	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
o = order(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

Endnotes

Endnote 3—Legislation history

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Name	Registration	Commencement	Application, saving and transitional provisions
<i>Migration (Arrangements for Protection, Refugee and Humanitarian Visas) Instrument (LIN 20/169) 2020</i>	12 November 2020	F2020L01420 13 November 2020	section 5
<i>Migration (Arrangements for Protection, Refugee and Humanitarian visas) Amendment Instrument (LIN 21/079) 2021</i>	16 November 2021	F2021L01562 17 November 2021	-
<i>Migration (Arrangements for Refugee and Humanitarian (Class XB) visas) Amendment Instrument (LIN 22/060) 2022</i>	8 June 2022	F2022L00750 10 June 2022	-
<i>Migration (Arrangements for Protection, Refugee and Humanitarian Visas) Amendment Instrument (LIN 23/013) 2023</i>	13 February 2023	F2023L00101 14 February 2023	-
<i>Migration (Arrangements for Protection, Refugee and Humanitarian Visas) Amendment Instrument (LIN 23/049) 2023 (No. 2)</i>	23 August 2023	F2023L01111 28 August 2023	-
<i>Migration (Arrangements for Protection, Refugee and Humanitarian Visas) Amendment (Internet Lodgement) Instrument 2025</i>	25 June 2025	F2025L00750 1 July 2025	-
<i>Migration (Arrangements for Protection, Refugee and Humanitarian Visas) Amendment (Expanding Internet Lodgement) Instrument 2025</i>	26 November 2025	F2025L01435 29 November 2025	-

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
s. 2.....	rep. LA s48D
s. 4.....	am. F2021L01562, am. F2025L01435
s. 5.....	rep. F2025L01435
s. 6.....	rep. LA s48C
s. 7.....	am. F2021L01562, rs. F2023L01111
s. 8.....	am. F2021L01562, am. F2022L00750, am. F2025L00750, am. F2025L01435
s. 9.....	am. F2021L01562, rs. F2023L00101, rs. F2023L01111
s. 10.....	am. F2021L01562, rs. F2023L00101, rs. F2023L01111